

#	Case Name	Tentative
		As a separate and independent ground, the motion is also denied, based on defendant SC Investments LLC's showing that the failure to pay arbitration fees resulted from inadvertence and/or excusable neglect. (<i>Hohenshelt v. Superior Court</i>, <i>supra</i> at 333-335; Rios Decl., ¶¶ 3-5.) This denial is without prejudice to a subsequent motion in the event the arbitration cannot be resumed and/or completed. (See <i>Brock v. Kaiser Foundation Hospitals</i> (1992) 10 Cal.App.4th 1790, 1796 [upon conclusion of the arbitration proceedings, if there is no award on the merits, "the action at law may resume to determine the rights of the parties"]; see also <i>id.</i> at 1808 [failure to cooperate in arbitration "does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics," but "may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence"]; <i>Cinel v. Christopher</i> (2012) 203 Cal.App.4th 759, 769 ["because the arbitration had been terminated and the trial court did not confirm, correct or vacate Christopher's petition, but instead dismissed the petition, the stay terminated and the trial court properly set the matter for trial"].) The order to show cause is DISCHARGED. The court sets a status conference regarding the arbitration for January 15, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to submit a joint statement concerning the arbitration. Defendant SC Investments LLC shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	The motion by Petitioner / Judgment Creditor Matthew R. Silver for a charging order against Respondent / Judgment Debtor Curtis R. Wright's partnership interests in Serviam by Wright LLP and Serviam Law, LLP, is GRANTED. (Code Civ. Proc., §§ 708.310, 708.320; Corp. Code, § 16504.) The court issues a charging order against Judgment Debtor's transferable partnership interests in (1) Serviam by Wright LLP and (2) Serviam Law, LLP, in the unsatisfied amount of the Judgment, which as of July 1, 2026 is \$1,573,363.37, representing the principal balance of the Judgment, plus accrued interest and costs. The court finds that Judgment Debtor has waived the direct service requirements of Code Civ. Proc., § 684.020, by opposing this matter on the merits, and failing to show prejudice from service on counsel. (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697-698 [service defects found waived

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		despite objection, where opposing party “did file an opposition to the motion, appeared and argued at the hearing, never requested a continuance of the hearing and never claimed prejudice by reason of insufficient notice or service”]; see also <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1267–1268 [opposing on notice grounds only, without addressing merits, preserves notice objection].) Judgment Debtor fails to substantiate his claimed exemptions, as is his burden. (Code Civ. Proc., §§ 703.580, subd. (b) [at a hearing on a claim of exemption, “the exemption claimant has the burden of proof”], 703.080, subd. (b) [“The exemption claimant has the burden of tracing an exempt fund”]; <i>Le Font v. Rankin</i> (1959) 167 Cal. App. 2d 433, 435 [“one who contends for an exemption must establish his right by evidence, by facts ... an affidavit which merely follows the language of the statute states nothing more than a conclusion of law and proves nothing”].) Judgment Debtor’s reliance on Code Civ. Proc., § 706.050 is misplaced, as it limits amounts that can be collected under an “earnings withholding order,” not a charging order as sought here. Judgment Debtor has also not provided the required financial statement for a claim of exemption under Code Civ. Proc., § 706.051 [amounts “necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor”]. (Code Civ. Proc., § 703.530, subd. (a) [“If property is claimed as exempt pursuant to a provision exempting property to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor, the claim of exemption shall include a financial statement], subd. (b) [financial statement requirements]; see also Judicial Council form WG-007/EJ-165 [form financial statement].) Judgment Debtor’s supporting declaration does not include the information required by Code Civ. Proc., § 703.530, subd. (b). Judgment Debtor offers no other grounds to deny the requested relief. Accordingly, a charging order issues as set forth above. Moving party shall give notice.
58.	Perfect 85 Degrees C, Inc. v. Virtuous	Plaintiff Perfect 85 Degrees C, Inc.’s Motion for Order Permitting Service of the Summons and Complaint on Defendant Virtuous Personnel, Inc. by Delivery to the

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	Personnel, Inc. 2026-01562151	California Secretary of State is GRANTED. (Corp. Code §1702., subd. (a).) Plaintiff Perfect 85 Degrees C, Inc.'s Motion for Order Permitting Service of the Summons and Complaint on Defendant Legacy & Co. by Delivery to the California Secretary of State is GRANTED. (Corp. Code §1702, subd. (a).) Corporations Code section 1702 permits the court to authorize delivery of process to the Secretary of State when the plaintiff has shown that process could not be served with reasonable diligence on the corporation's designated agent, or on the corporation by any other authorized method. (Corps. Code § 1702, subd. (a).) <u>Plaintiff has Shown that Defendant Virtuous Personnel, Inc.'s Designated Agent for Service of Process Cannot, with Reasonable Diligence, be Found at the Designated Address and the Corporation Cannot, with Reasonable Diligence be Served by any Other Authorized Method</u> The Court finds Plaintiff has established reasonable diligence in attempting to serve process on Defendant Virtuous Personnel, Inc.'s designated agent for service of process, Wendy Laguna, at the address designated: 1155 S. Milliken Ave, Ste J, Ontario, Ca 91761. However, the process server was informed by the current occupant that Defendant Virtuous was no longer the tenant at that address. (ROA 13 [Blank Decl. at ¶ 5]; see also <i>Id.</i> at Ex. B [Declaration of Due Diligence].) Despite several more efforts to locate a potential address where defendant's agent could be served, Plaintiff was not able to effect service at any of these locations. (Blank Decl. at ¶¶ 6-7.) Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods on Defendant Virtuous Personnel, Inc. Accordingly, the Court orders service to be made upon Defendant Virtuous Personnel, Inc. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).) <u>Plaintiff has Shown that Defendant Legacy & Co.'s Designated Agent for Service of Process Cannot, with</u>